

NEW ENGLAND FIRST AMENDMENT COALITION

Assessing Police Misconduct Records in Maine

Presented by:

Sigmund D. Schutz

Preti Flaherty, LLP

Tel. 207. 791.3247

sschutz@preti.com

March 21, 2024

LEGAL FRAMEWORK

State Employees

5 M.R.S. § 7070

County Employees

30-A M.R.S. § 503

Municipal Employees

30-A M.R.S. § 2702

Schools Employees

20-A M.R.S. § 6101

MUNICIPAL EMPLOYEES

(Including Police Officers)

Title 30-A, Section 2702:

<http://www.mainelegislature.org/legis/statutes/30-a/title30-Asec2702.html>

CONFIDENTIAL

Applications resumes and letters and notes of reference, other than those letters and notes of reference expressly submitted in confidence, are confidential *until the applicant is hired*, at which point they become public records.

Telephone numbers are not public records if they are designated as "unlisted" or "unpublished" in an application, resume or letter or note of reference.

CONFIDENTIAL (CONTINUED)

Municipal records pertaining to an identifiable employee and containing the following:

- 1) Medical information of any kind, including information pertaining to diagnosis or treatment of mental or emotional disorders; [may include counseling, therapy, and evaluations, treatment, etc.]
- 2) Performance evaluations and personal references submitted in confidence;**
- 3) Information pertaining to the creditworthiness of a named employee;
- 4) Information pertaining to the personal history, general character or conduct of members of an employee's immediate family; and
- 5) Complaints, charges or accusations of misconduct, replies to those complaints, charges or accusations and any other information or materials that may result in disciplinary action.

CONFIDENTIAL (CONTINUED)

Other information to the extent access is prohibited by statute.

A public employee's personal contact information – home address, home telephone number, home facsimile number, home e-mail address and personal cellular telephone number and personal pager number – is confidential. 1 M.R.S.A. § 402(3)(O).

.

NON-CONFIDENTIAL

Employment Agreement

Separation Agreements -- *See Guy Gannett Pub. Co. v. Univ. of Me.*, 555 A.2d 470 (Me. 1989) (“the public has a right to know the terms upon which a public employer has settled with a resigning contract employee”)

NON-CONFIDENTIAL (CONTINUED)

SETTLEMENT AGREEMENT AGREEMENT made by, between and among the University of Maine System, acting through the University of Maine, with principal offices in Bangor, Maine (hereinafter "University"), the Associated Faculties of the University of Maine System, Maine Teachers Association/National Education Association, an employee organization with a place of business in Bangor, Maine (hereinafter "Association") and Peter M. Gavett, Head Coach of Women's Basketball and Lecturer in Physical Education and Athletics at the University of Maine, (hereinafter "Peter M. Gavett"). For valuable consideration, and in consideration of the mutual promises and covenants contained herein, the University, the Association and Peter M. Gavett hereby agree as follows: 1. Peter M. Gavett will resign his employment with the University by his submission of a written resignation immediately upon execution of this Agreement, which resignation shall be effective at 5:00 p.m. (D.S.T.) June 27, 1988. 2. Peter M. Gavett will vacate his office at the University of Maine and remove all his personal belongings from the University of Maine campus by July 5, 1988. 3. Peter M. Gavett will have no access to the Memorial Gymnasium/Fieldhouse facility on the University of Maine campus for a period of one year, from July 5, 1988. [sentence deleted] 4. University will pay to Peter M. Gavett the gross lump sum of Thirty-Six Thousand dollars (\$36,000) being the equivalent of one year of future salary determined and calculated as of June 27, 1988. From said gross amount, University will make required deductions for Social Security, FICA taxes, Federal and State of Maine withholding taxes. 5. Peter M. Gavett shall not initiate social, verbal or written contact with any woman who is currently a member of the University of Maine women's basketball team or any woman who has been a member of the team during the last two years except with the prior approval of the Athletic Director. *474 6. In consideration for lump sum payment, under section 4 above, Peter M. Gavett releases and discharges University from any and all demands, claims, or actions of every nature which he, his heirs or assigns, may have against the University in existence or having accrued as of the 27th of June, 1988. The University, Association and Peter M. Gavett agree that neither they, nor any of their officers, employees or representatives will disclose or communicate to anyone any portion or condition of this Settlement Agreement or the underlying reasons required to divulge information pursuant to a duly authorized court subpoena, summons or judicial order. IN WITNESS WHEREOF, the parties hereto have executed this Agreement, this 25th day of June, 1988. Peter M. Gavett University of Maine System Associated Faculties of the University of Maine System MTA, NEA

NON-CONFIDENTIAL (CONTINUED)

Termination or Resignation Letters except to the extent they contain medical information, or other information specifically identified as confidential, above.

Public employee salaries and benefits.

Expense reports.

Title or position

Work schedule

Applications and resumes *after* the employee is hired, subject to redaction of home contact information (as mentioned above).

FINAL DISCIPLINARY DECISIONS

If disciplinary action is taken against the employee, the final written decision imposing or upholding discipline. If **no** disciplinary action is taken, then the record remains **confidential**.

Specifically: If disciplinary action is taken, the final written decision relating to that action is no longer confidential after the decision is completed if it imposes or upholds discipline. **The decision must state the conduct or other facts on the basis of which disciplinary action is being imposed and the conclusions of the acting authority as to the reasons for that action.** If an arbitrator completely overturns or removes disciplinary action from an employee personnel file, the final written decision is public except that the employee's name must be deleted from the final written decision and kept confidential. If the employee whose name was deleted from the final written decision discloses that the employee is the person who is the subject of the final written decision, the entire final written report, with regard to that employee, is public.

WHAT IS A FINAL WRITTEN DECISION?

For purposes of this subparagraph, "final written decision" means:

- (a) The final written administrative decision that is not appealed pursuant to a grievance arbitration procedure; or
- (b) If the final written administrative decision is appealed to arbitration, the final written decision of a neutral arbitrator.

A final written administrative decision that is appealed to arbitration is no longer confidential 120 days after a written request for the decision is made to the employer if the final written decision of the neutral arbitrator is not issued and released before the expiration of the 120 days.

INVESTIGATIONS OF DEADLY FORCE OR PHYSICAL FORCE BY LAW ENFORCEMENT OFFICER

Investigation findings and the name of a law enforcement officer is not confidential in cases involving:

- A. The use of deadly force by a law enforcement officer; or
- B. The use of physical force by a law enforcement officer resulting in death or serious bodily injury.

INVESTIGATIONS OF DEADLY FORCE OR PHYSICAL FORCE BY LAW ENFORCEMENT OFFICER (CONTINUED)

In cases specified in paragraphs A and B, regardless of whether disciplinary action is taken, the findings of any investigation into the officer's conduct are no longer confidential when the investigation is completed and a decision on whether to bring criminal charges has been made, except that if criminal charges are brought, the findings of the investigation remain confidential until the conclusion of the criminal case.

*Any other information / record not listed as confidential, above.

INACTIVE OR DISCIPLINE REMOVED FROM AN EMPLOYEE'S FILE

Additionally, The State must search the personnel records of employees who were disciplined during the relevant time period, including inactive disciplinary actions, and documents related to final disciplinary action that may have been removed from the employee file pursuant to a bargaining agreement. To the extent the State is able to locate these additional documents, it must turn them over in a manner consistent with this Order. If the State is unable to locate the documents after reasonably diligent efforts and has good reason to believe they no longer exist, or never existed, the State is ordered to provide the Court and Plaintiffs an account of the efforts made to locate the missing documents and what those efforts revealed as to the status of the missing documents.

Bangor Pub. Co. v. State of Maine, Docket No. CV-2021-00042 (May 26, 2022)



SIGMUND D. SCHUTZ

Partner

Tel. 207. 791. 3247

sschutz@preti.com

DELIBERATELY
DIFFERENT

PretiFlaherty